

Veterans Health Administration (VHA) Resuscitation Education Products and Services

B.3 PERFORMANCE WORK STATEMENT

1. Title of Project: Veterans Affairs (VA) Veterans Health Administration (VHA) Resuscitation Education Products and Services

2. Background: The Resuscitation Education and Innovation (REdI) program, housed within the VHA Simulation Learning, Evaluation, Assessment, and Research Network (SimLEARN) under the Office of Healthcare Innovation and Learning (OHIL), serves as the national program responsible for delivering mandatory resuscitation education and training across the Veterans Health Administration (VHA). This includes both clinical and non-clinical employees across the enterprise.

VHA is federally mandated to ensure staff competency in resuscitation techniques in accordance with healthcare regulations and internal directives. To meet these requirements, REdI provides comprehensive national support services, including training materials, standardized equipment, oversight, and validation of local VA medical facility resuscitation education programs.

As the national subject matter expert in resuscitation education, REdI is responsible for the full spectrum of resuscitation training across VHA. This includes the identification, development, administration, and maintenance of all required courseware, as well as oversight of mock code programs, training materials, and standardized equipment. REdI serves as the operational lead for the implementation and compliance of VHA Directive 1177, Cardiopulmonary Resuscitation, ensuring that all designated clinical and non-clinical personnel are equipped to obtain and maintain the certifications necessary for emergency response readiness. Through this comprehensive oversight, REdI ensures consistency, quality, and preparedness across the enterprise. Certification requirements are further defined in VHA Directive 1101.14, Emergency Medicine, which outlines the clinical and non-clinical roles required to maintain appropriate levels of training. These directives ensure that all designated staff are prepared to respond effectively to clinical deterioration or medical emergencies involving patients, visitors, or employees within VA medical facilities and their surrounding campuses.

Over the past nine years, REdI has led a transformative shift from traditional, instructor-led classroom training to an innovative, self-directed digital platform. This evolution embraces a Low Dose, High Frequency (LDHF) model that emphasizes deliberate practice and objective feedback, enabling clinicians to build and sustain critical skills through brief, focused sessions. This modern approach aligns with the latest education science and responds to healthcare market demands by significantly reducing time away from direct Veteran care, preserving clinical capacity and ensuring continuity of services.

Today, nearly 275,000 VHA clinical and non-clinical employees across 172 VA medical centers and over 1,200 Community-Based Outpatient Clinics engage with REdI's digital learning ecosystem. The platform delivers scenario-based eLearning modules that promote interactive learning, assess knowledge and confidence, and adapt to learner needs. These are followed by psychomotor skill assessments conducted on Mobile

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Cardiopulmonary Resuscitation (CPR) Testing Stations equipped with adult and infant manikins.

This self-directed model provides real-time, objective feedback and validates competency in compressions and ventilations, enabling certification in Responder (Lay Rescuer), Basic Life Support (BLS), Advanced Cardiovascular Life Support (ACLS), and Pediatric Advanced Life Support (PALS) without instructor facilitation. Learners can complete training through a traditional biennial format or a standardized LDHF pathway. The LDHF model is grounded in evidence-based education science, helping prevent skill decay in life-saving interventions and ensuring compliance with federal healthcare accreditation standards.

The current Government training environment features an enterprise-wide infrastructure that supports standardized resuscitation education across the VHA. This includes approximately 2,050 Mobile CPR Testing Stations, each equipped with Laerdal QCPR® adult and infant manikins. These stations deliver Lay Rescuer, BLS, ACLS, and PALS courseware through the RQI 1Stop digital platform.

In addition to digital delivery, the Government maintains a comprehensive library of current-edition digital and print educational materials to support a wide range of certifications, including HeartSaver (HS), BLS, ACLS, Advanced Stroke Life Support (ASLS), Pediatric Emergency Assessment, Recognition, and Stabilization (PEARS), and PALS. These materials are utilized by a network of approximately 2,500 trained and approved VHA instructors who facilitate instructor-led classroom sessions and mock code training, as appropriate. This learning environment ensures that VHA personnel, both clinical and non-clinical, have access to the appropriate level of training based on their roles, while maintaining flexibility, standardization, and compliance with national resuscitation education requirements.

The International Liaison Committee on Resuscitation (ILCOR) serves as the global coordinating body for resuscitation science. It provides a consensus-based framework for evaluating and updating evidence-based guidelines related to CPR and Emergency Cardiovascular Care (ECC). ILCOR publishes updated treatment and training recommendations on a five-year cycle, with the most recent guidelines covering the period of 2025-2030. These updates inform the continuous improvement of VHA resuscitation training programs, ensuring alignment with the latest global standards and best practices.

3. Scope of Work: The Scope of Work will consist of three primary categories of tasks.

- a. **Program Management and Maintenance of Support Services.** These services are essential to ensure uninterrupted access to resuscitation training, maintain equipment functionality, and support enterprise-wide compliance with certification requirements.

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- 1) The contractor shall provide support services, on a continuous basis, including daily program support, program coordination support and warranty support for Mobile CPR testing stations.
- 2) The contractor shall provide technical support services to VHA end users and program staff, including email-based support, customer service telephone support, technical troubleshooting related to RQI platform and associated equipment, replacement of defective equipment, generation and delivery of required reports, and support for course and data integration between VHA Talent Management System (TMS) and the RQI course content.
- 3) The contractor shall provide access to national databases that allow VHA facilities to benchmark performance metrics related to overall resuscitation outcomes.
 - a. The contractor shall maintain all required security and authorization statuses for the digital solution, including continuous compliance with Federal Risk and Authorization Management Program (FedRAMP) requirements and maintenance of a valid VA Authority to Operate (ATO), in accordance with VA Directive 6500, VA Handbook 6500, and other applicable VA cybersecurity, privacy, and cloud security policies. The contractor shall promptly notify the Government of any change in FedRAMP authorization or ATO status that may affect the availability, security, or compliance of the solution.
 - b. **Electronic Courseware.** The contractor shall provide secure, interactive electronic courseware that supports adaptive, scenario-based resuscitation training and certification. The courseware must integrate with existing VA infrastructure, support multiple certification levels, and align with current resuscitation education guidelines. The digital solution shall be Personal Identity Verification (PIV)-enabled to allow authorized access through VA-issued credentials and must comply with all applicable VA security, privacy, and data protection requirements, including adherence to Federal Information Security Modernization Act (FISMA), VA Handbook 6500, and related VA cybersecurity policies. The contractor shall ensure the courseware is accessible via VA networked systems and PIV-compatible devices (e.g., VA-issued laptops) without compromising system security or user privacy.
 - c. **Resuscitation Education Materials**
 - 1) The contractor shall furnish all labor, supervision, materials, and logistical support necessary to deliver resuscitation education and training materials, both instructor-led and self-directed learning environments, as applicable, to each designated VHA facility specified in an allocation document provided by the Government.

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- 2) The contractor shall provide digital and/or print resuscitation education materials to support the full spectrum of training programs required by the Government to include Lay Rescuer, BLS, ACLS, PALS, PEARS and ASLS.
- 3) All educational content, whether digital and/or print, must align with the most current evidence-based resuscitation guidelines issued by the International Liaison Committee on Resuscitation (ILCOR). Materials must reflect the latest clinical science and instructional design standards to ensure consistency, accuracy, and regulatory compliance across the VHA enterprise.

4. Current Environment. The Veterans Health Administration (VHA) Resuscitation Education and Innovation (REdI) program currently operates within a comprehensive, enterprise-wide resuscitation training environment that integrates both instructor-led and self-directed learning modalities.

- a. The Government environment includes the latest editions of digital and print education materials to support a wide range of resuscitation training programs, including HS, BLS, ACLS, ASLS, PEARS, and PALS. These materials are delivered by a network of approximately 2,500 trained and approved VHA instructors who facilitate instructor led activities such as classroom-based and mock code training sessions.
- b. In parallel, the Government environment supports a digital resuscitation education platform that includes electronic courseware for Lay Rescuer, BLS, ACLS, and PALS. This platform is supported by the necessary equipment, peripheral devices, and vendor-provided services, including technical support, platform maintenance, and an equipment warranty program. These components enable the successful deployment and sustainment of resuscitation training across the VHA enterprise.
- c. The current environment includes the following key components:
 - 1) HeartCode® Complete
 - 2) Resuscitation Quality Improvement (RQI)® Platform
 - 3) Mobile CPR Testing Stations
 - 4) Laerdal QCPR® Adult and Infant Manikins
 - 5) Resuscitation course content that supports both traditional biennial certification and LDHF models. This includes self-directed certification in Lay Rescuer, BLS, ACLS, and PALS using Mobile CPR Testing Stations without instructor facilitation.
 - 6) VA-issued laptops tethered via USB to Mobile CPR Testing Stations for skills validation, with secure data transmission to credentialing systems.

5. Contract Type: The Government anticipates award of a Firm Fixed Price (FFP) Indefinite Quantity, Indefinite Delivery (IDIQ) contract.

6. Period of Performance. The period of performance shall consist of one (1) twelve-month base period and four (4) twelve-month option periods. An additional six (6) month extension may be exercised in accordance with FAR Clause 52.217-8, *Option to Extend*

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Services. The total period of performance shall not exceed sixty (60) months and six (6) months if the extension is exercised.

a. Period of Performance Schedule:

- 1) Base Period: May 26, 2026 – May 25, 2027
- 2) Option Period 1: May 26, 2027 – May 25, 2028
- 3) Option Period 2: May 26, 2028 – May 25, 2029
- 4) Option Period 3: May 26, 2029 – May 25, 2030
- 5) Option Period 4: May 26, 2030 – May 25, 2031
- 6) Optional Six-Month Extension: May 26, 2031 – November 25, 2032

Any work at the Government site shall not take place on Federal holidays or weekends unless directed by the Contracting Officer (CO). If required, the CO may designate the Contractor to work during holidays and weekends.

There are eleven (11) Federal holidays set by law (USC Title 5 Section 6103) that VA follows:

1) Under current definitions, five are set by date:

New Year's Day	January 1
Juneteenth	June 19
Independence Day	July 4
Veterans Day	November 11
Christmas Day	December 25

- 2) If any of the above falls on a Saturday, then Friday shall be observed as a holiday. Similarly, if one falls on a Sunday, then Monday shall be observed as a holiday.

3) The other six are set by a day of the week and month:

- | | |
|----------------------------------|-----------------------------|
| a) Martin Luther King's Birthday | Third Monday in January |
| b) Washington's Birthday | Third Monday in February |
| c) Memorial Day | Last Monday in May |
| d) Labor Day | First Monday in September |
| e) Columbus Day | Second Monday in October |
| f) Thanksgiving | Fourth Thursday in November |

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7. Place of Employment: The place of performance shall include the contractor's facilities, as well as VHA medical centers and associated locations across the United States and U.S. Territories.

8. Travel: The Government does not anticipate travel under this effort. However, if travel becomes necessary in support of the contract, all associated costs shall be the responsibility of the contractor and will not be reimbursed by the Government.

9. Mandatory Task and Deliverables Statement: The Contractor shall perform all mandatory tasks and provide the specific deliverables outlined in this Performance Work Statement (PWS) within the designated period of performance.

- a. If, for any reason, a deliverable cannot be submitted by its scheduled due date, the Contractor shall notify the Program Manager (PM) and Contracting Officer's Representative (COR) in writing no later than three (3) business days prior to the due date. This written notification must include:
 - 1) A detailed explanation for the delay
 - 2) The anticipated completion date
 - 3) An assessment of the impact on the overall project timeline
- b. All tasks performed under this contract shall be of a non-personal services nature. Contractor personnel shall not be supervised by Government employees, nor shall they perform duties that create the appearance of an employer-employee relationship with any VA organization or staff.
- c. Contractor personnel shall not engage in inherently governmental functions, including but not limited to:
 - 1) Direct supervision of Government employees
 - 2) Oversight of other contractors on separate contracts
 - 3) Decision-making or policy-setting on behalf of the Government
 - 4) Any activity that may be perceived as performing inherently governmental responsibilities

9.1 Task and Deliverable Requirements:

9.1.1 Program Management and Maintenance of Support Services

9.1.1.1 Program Coordination and Equipment Warranty of Mobile CPR testing stations.

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- a. Contractor shall work with internal VHA REdI Program Manager or designee to facilitate the day-to-day program support of resuscitation education and training programs. The Resuscitation Training Program includes HeartCode®, RQI®, CPR Mobile Testing Stations, Laerdal QCPR® Adult and QCPR® Infant manikins, resuscitation course content and skill testing in Responder, BLS, ACLS and PALS courses.
- b. Works with internal colleagues, National VHA TMS, National OI&T, and VHA REdI Program Staff (Project Manager and Health Education Specialists) to facilitate the day-to-day progress of the program, control, budget, scope management, procurement, risk and issue management, contingency planning, project visibility.
- c. Provides guidance working with VHA REdI Program and project team in terms of communication, accountability and issue escalation from the field.
- d. Works effectively with technical team members and cross functional teams to ensure the project is on time and within contract requirements.
- e. Project planning, scope management, procurement assistance, risk and issue management, contingency planning, project visibility, status reporting, and escalation.
- f. Serve as liaison for the internal team to ensure the successful delivery of all required components.
- g. Contractor shall support the local VHA medical facility Program Directors to ensure optimal working order of the existing Government equipment to support the Resuscitation Training Programs to include Mobile CPR Testing Stations, (Laerdal QCPR® Adult and QCPR® Infant manikins.
- h. Initiates a replacement manikin or part to be shipped to the local VHA facility.
- i. Coordinates the return of non-functioning manikin or part.

9.1.1.2 Technical Support Services.

- a. Contractor shall provide direct technical and administrative support to VHA medical facility Program Directors to ensure successful implementation and sustainment of existing HeartCode® and RQI® training programs.
- b. Contractor shall collaborate with VA facility REdI Program Directors and internal stakeholders to align support services with national program goals and local facility needs.
- c. Contractor shall manage user accounts and student records within the proprietary RQI® Administrative environment, including account activations and data imports when appropriate.

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- d. Contractor shall deliver virtual administrative training (e.g., webinars) to VHA facility staff as needed to ensure consistent understanding of system use and program updates.
- e. Contractor shall monitor and report emerging trends that may impact training accessibility, learner engagement, or program effectiveness, and escalate concerns to REdl leadership.
- f. Contractor shall provide quarterly reports on facility-level performance, including enrollment growth, compliance rates, and user satisfaction metrics.
- g. Contractor shall coordinate and test updates to HeartCode® and RQI® courseware, administrative processes, and training equipment prior to deployment across VHA facilities.
- h. Contractor shall provide access and orientation to national benchmarking databases that allow VHA facilities to evaluate performance and outcomes against peer institutions.

Deliverables:

- a. Monthly written status report, submitted no later than the 10th calendar day of the following month, outlining the contractor's support of VHA medical facility Program Directors, including coordination with REdl leadership, account management, and administrative support for HeartCode® and RQI® programs. Provide centralized log documenting all technical support interactions, system updates, software/hardware changes, and associated testing outcomes, including communication of updates to REdl staff and facility stakeholders. (student enrollment and discipline)
- b. Quarterly report, submitted no later than the 10th calendar day of the first month of each fiscal year quarter, detailing facility-level training compliance, enrollment trends, user satisfaction, and equipment status (including warranty claims, replacements, and maintenance activities).
- c. Participation in bi-weekly collaboration meetings with the National VHA REdl Team.

9.1.2 Electronic Courseware

9.1.2.1 The electronic courseware shall have the following salient characteristics:

- a. Courseware shall be hosted on a secure, online platform that includes interactive learning components, scenario-based patient cases, and assessments that evaluate both knowledge and learner confidence.
- b. Modules shall simulate clinical decision-making through realistic, scenario-based patient cases that reinforce didactic content.

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- c. Courseware shall incorporate intelligent, competency-based adaptive learning that adjusts to the learner's knowledge, confidence, and performance.
- d. The platform shall support both traditional biennial training and an LDHF model to promote continuous skill retention.
- e. Courseware shall integrate with mobile CPR testing stations to enable self-directed psychomotor skills practice.
- f. The system shall provide real-time, objective feedback on CPR performance (compressions and ventilations) and issue electronic certification (e-Card or eCredential) upon successful completion, without instructor facilitation.
- g. Courseware shall support training and certification for Lay Rescuer, BLS, ACLS, and PALS.
- h. The solution shall be fully compatible with existing Government infrastructure, including the RQI 1Stop platform and Laerdal QCPR® manikins.
- i. Courseware shall align with the most current resuscitation education guidelines issued by the ILCOR.
- j. Courseware shall be accessible through the VA's Talent Management System (TMS), ensuring accurate tracking of learner progress, completion, and compliance.
- k. The solution shall operate as a Software-as-a-Service (SaaS) product, accessible via Government-issued devices and secure networks, and comply with FedRAMP and FISMA standards.

Deliverables:

- A. Monthly status reports submitted via email no later than the 10th calendar day of the following month, to the REdI Project Manager/COR, this report shall include the number and discipline of students enrolled, system usage metrics, and any notable issues or updates.
- B. Quarterly technical report, submitted no later than the 10th calendar day of the first month of each fiscal year quarter, detailing the number and nature of trouble calls, triage actions, trends of reported issues, and resolutions implemented.
- C. Bi-Weekly coordination meetings with the national VHA REdI team to provide operational updates, discuss ongoing issues, and coordinate upcoming changes or implementations.
- D. Quarterly organizational analytic report, submitted no later than the 10th calendar day of the first month of each fiscal year quarter, providing a high-level summary of student performance data across VHA, including visualizations and insights into national trends to inform program improvement.

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9.1.3 Software-as-a-Service (SaaS) FEDRAMP Assessment and Authorization and Continuous Monitoring Requirements.

9.1.3.1 The information system solution selected by the Contractor shall comply with the FISMA and have a current VA authorization.

9.1.3.2 The Contractor shall remain in compliance with FedRAMP requirements as mandated by Federal laws and policies, including making available any documentation, physical access, and logical access needed to support this requirement.

9.1.3.3 The FedRAMP Authorization level and existing VA ATO should be no less than the level required for this use case which has been defined as Low Impact Level.

9.1.3.4 The Contractor shall, where applicable, assist with the VA ATO Sustainment Process to help maintain health and quality of agency authorization of the cloud service or migrated application.

9.1.3.5 The Contractor shall exclusively provide subscription licenses to FedRAMP authorized and VA authorized environments.

9.1.3.6 If new or unanticipated vulnerabilities are discovered by either VA or the Contractor, or if existing safeguards have ceased to function, the discoverer shall bring the situation to the attention of the other party within one hour in accordance with Addendum B, VA Information and Information System Security/Privacy Language. VA Privacy and Security deliverables as directed by the VA System owner.

9.1.3.7 The Contractor shall comply with FedRAMP data management requirements.

9.1.3.8 Successful issuance of a VA ATO will be required before live VA data can be used in the system.

9.1.3.9 The Contractor shall participate in FedRAMP Continuous Monitoring activities as outlined by FedRAMP's Continuous Monitoring Strategy Guide found on the FedRAMP Website.

9.1.3.10 The Contractor shall provide continuous monitoring activities including, but not limited to, scans, security artifacts, and provide Continuous Monitoring Monthly Scans and monthly Plan of Action and Milestones (POAM) reports as outlined by FedRAMP requirements.

9.1.3.11 The Contractor shall participate in monthly Agency and FedRAMP Sustainment meetings following the granting of a VA ATO.

9.1.3.12 The Contractor shall provide a Monthly VA License report of VA sites currently utilizing the cloud product post ATO award. The license report shall include the number of subscription licenses being utilized and the specific VA site where they're in use.

Deliverables:

- A. Continuous Monitoring Monthly Scans

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B. Plan of Action and Milestones Reports.

C. Monthly VA License Report

- The SaaS offering must be hosted within the United States and data stored/processed/transmitted within the offering must remain within the United States. CSPs should be aware of FedRAMP and ready to partner with VA through the SaaS FedRAMP Authorization process.

9.1.4 Print and Digital Materials

9.1.4.1 The contractor shall provide all labor, supervision, and other resources required to deliver to each individual VHA facility (noted in the allocation document).

9.1.4.2 The contractor shall provide resuscitation education training course materials that is are brand name American Heart Association (AHA) curriculum. These materials must meet the following salient characteristics, which are essential to ensure alignment with the Department of Veterans Affairs' enterprise-wide resuscitation training and certification standards:

- a. Materials must reflect the most current resuscitation science and guidelines as issued by the International Liaison Committee on Resuscitation (ILCOR) and adopted by the American Heart Association.
- b. Materials must be approved for use in training programs that result in nationally recognized certification for BLS, ACLS, PALS, PEARS, and HeartSaver courses.
- c. Courseware must be compatible with the VA's existing training platforms, including the RQI 1Stop system and Talent Management System (TMS), and support integration with CPR Mobile Testing Stations and Laerdal QCPR® manikins.
- d. Materials must include instructor manuals, provider manuals, digital videos, crash cart cards, posters, and eCards necessary to deliver and document instructor-led and blended learning courses.
- e. Materials must be available in both digital and print formats to support flexible delivery across VHA medical centers and Community-Based Outpatient Clinics (CBOCs).
- f. eCards must be issued through a credentialing system recognized by national accrediting bodies and accepted by healthcare institutions for compliance purposes.

Deliverables:

- A. Tracking information shall be provided to the VA medical facility POC and to the REI Project Manager.
- B. Delivery will be within 30 calendar days of contract task award.

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10. OTHER DIRECT COSTS

No other direct costs are anticipated under this IDIQ contract.

11. GOVERNMENT- FURNISHED EQUIPMENT, MATERIALS, FACILITIES AND INFORMATION

- a. The current training environment includes Government-owned equipment that has already been procured and deployed across VHA medical facilities. This includes Mobile CPR Testing Stations equipped with Laerdal QCPR® Adult and Infant manikins, which operate the Responder, BLS, ACLS, and PALS courseware via the RQI 1Stop Digital Platform. Due to the significant investment in this infrastructure, a complete replacement or retooling of the existing environment is not feasible and would be cost-prohibitive to the Government.
- b. The Government will provide the following support to facilitate contractor performance:
 - 1) During onsite training events, the Government will furnish access to relevant personnel and existing training equipment at VHA medical facilities.
 - 2) The Government will provide appropriate training or conference space for Government-related training activities, including standard presentation aids (e.g., whiteboards, monitors, and display systems).
 - 3) VHA National REdl program staff will supply a list of designated points of contact for each VHA medical facility to support coordination of onsite training.

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12. Quality Assurance Surveillance Plan

Table 1. Performance Requirement Summary

Performance Indicator	Performance Standard	Minimum Acceptable Standard	Method of Surveillance	Frequency
Program Management Support PWS paragraph ...	Contractor provides comprehensive program and project management support, including coordination, reporting, and warranty services.	95% accuracy and completeness, allowing only minor issues such as typographical errors that do not affect meaning or decision-making; 0% significant errors or omissions, defined as incorrect, missing, or misleading information that could impact program decisions, performance assessments, or contractual compliance.	Review of reports, meeting minutes, and issue logs	Monthly

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Electronic Courseware Delivery PWS paragraph ...	Courseware is delivered, integrated with TMS, and accessible to learners with real-time feedback and certification issuance.	100% availability; 95% learner access success rate; 0% critical system failures	System access testing, user feedback, and LMS reports	Quarterly
FedRAMP and ATO Compliance PWS paragraph ...	All systems must maintain valid FedRAMP Moderate or High certification and VA ATO throughout the contract period.	95% compliance; zero lapses in FedRAMP or ATO status	Review of FedRAMP documentation, ATO status reports, and VA OIT security reviews	Due 30 days post award and monthly reports thereafter
Instructor-Led Materials Distribution PWS paragraph...	Digital and print materials are delivered in accordance with the allocation schedule and meet content standards.	100% on-time delivery; 95% accuracy in order fulfillment	Review of shipping logs, inventory, and user feedback	Quarterly
Contract Deliverables and Reporting PWS paragraph...	All reports and deliverables are submitted on time and include required content.	95% error-free for minor issues; 0% significant omissions	Review of submitted reports and deliverables	Monthly

12.1 METHODS OF SURVEILLANCE

- a. The Contracting Officer's Representative (COR) may use one or more of the following surveillance methods to monitor contractor performance under this QASP. All findings shall be documented and maintained in the COR's Quality Assurance (QA) file.
 - 1) The COR shall conduct a full review of all contractor deliverables and performance documentation on a monthly basis. All findings will be recorded and retained in the QA file.

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- 2) The COR may review a statistically valid random sample of contractor deliverables or performance outputs. Results of the sample review will be documented and maintained in the QA file.
- 3) The COR shall investigate and document any validated customer complaints or confirmed deficiencies in contractor performance, particularly those falling below the Acceptable Level of Performance (ALP). These findings will be used to assess compliance and may trigger corrective action.
- 4) The COR shall conduct formal performance review meetings with the contractor on a recurring basis (e.g., monthly or quarterly) to assess overall contract performance, discuss trends, address issues, and review deliverables. Meeting minutes and action items will be documented and retained in the QA file.
- 5) Verification of electronic licenses. The PM/COR will conduct periodic functional inspections of the services provided under the contract, including verification that electronic courseware licenses are active, accessible, and functioning as intended for end users. Although a centralized license inventory may not be visible, the PM/COR will validate license availability through user access testing, system reporting, and confirmation of learner enrollment and course completion data.
- 6) The PM/COR will certify receipt of services and/or goods and recommend acceptance of the deliverables. This certification process will be used to authorize payment of contractor invoices and will serve as the official record that contractor performance has met the requirements for the period covered by the invoice.

12.2 FREQUENCY OF MEASUREMENT

The COR shall periodically assess whether the established frequency of surveillance remains appropriate based on the nature and performance of the work. At a minimum, performance surveillance shall occur no less than twice per year during the period of performance for each task order.

12.3 ACCEPTABLE PERFORMANCE LEVELS (APLS)

Requirement	Performance Standard	Surveillance Method	Outcome
Project Management, Milestones, and Schedule	Contractor notifies the Government of potential issues at least 90% of the time.	100% inspection of milestone tracking and communications	Notification occurs within two business days of a known issue, or within 24 hours for urgent issues.

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	Contractor submits deliverables in accordance with the approved schedule, with no more than five incidents of slippage per performance period.	100% inspection of deliverables and schedule adherence	No more than five late submissions (within ± 5 business days) per performance period.
Written Communication	Written materials are grammatically correct, well-organized, and appropriate for the intended audience at least 95% of the time.	Random sampling of written deliverables and correspondence	Written communication is clear, concise, and free of significant errors; message is easily understood.
Customer Support	Contractor maintains courteous and professional interactions, with no more than five validated complaints per performance period.	Customer feedback and complaint tracking	Customer issues are resolved within one business day; no more than five validated complaints requiring Government intervention.

12.4 DOCUMENTING PERFORMANCE

- a. **Acceptable Performance.** The Government shall document acceptable performance in accordance with the Acceptable Performance Levels (APLs) outlined in Section 12.3. Documentation may include inspection results, meeting notes, reports, and correspondence. All records of acceptable performance may be used as supporting documentation for future contractual actions, including performance evaluations and option period decisions.
- b. **Unacceptable Performance.** When unacceptable performance is identified, the COR shall notify the Contracting Officer (CO) in writing. If immediate action is required, verbal notification may be made first but must be followed by written documentation. The COR shall record the issue and any related discussions in the COR's Quality Assurance file.
 - 1) If the CO determines that formal action is warranted, the COR shall prepare a Contract Discrepancy Report (CDR) and present it to the contractor's Program Manager. The contractor shall acknowledge receipt of the CDR in writing to the CO.'
 - 2) The CDR shall include:
 - a) A description of the performance deficiency
 - b) The required timeframe for corrective action

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- c) Whether a Corrective Action Plan (CAP) is required
- d) If a CAP is required, the contractor shall submit a written plan detailing how the deficiency will be corrected and how recurrence will be prevented. The CO will review the CAP for adequacy and determine whether further action is necessary.
- e) All CDRs and related documentation may be used to support contractual decisions, including withholding of payment, termination for cause, or negative performance evaluations.

13. SECURITY AND PRIVACY REQUIREMENTS

VA Information and Information System Security/Privacy Language for Contracted Personnel from VA Handbook 6500.6, Contract Security, Appendix C:

13.1 Physical Security and Safety Requirements

The Contractor and their personnel shall follow all VA policies, standard operating procedures, applicable laws and regulations while on VA property. Violations of VA regulations and policies may result in citation and disciplinary measures for persons violating the law.

- a. The Contractor and their personnel shall wear visible identification at all times while they are on the premises.
- b. VA does not provide parking spaces at the work site; the Contractor must obtain parking at the work site if needed. It is the responsibility of the Contractor to park in the appropriate designated parking areas. VA will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.
- c. Smoking is prohibited inside/outside any building other than the designated smoking areas.
- d. Possession of weapons is prohibited.
- e. The Contractor shall obtain all necessary licenses and/or permits required to perform the work, with the exception of software licenses that need to be procured from a Contractor or vendor in accordance with the requirements document. The Contractor shall take all reasonable precautions necessary to protect persons and property from injury or damage during the performance of this contract.

13.2 Confidentiality and Non-Disclosure

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- . The Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations.
- . The VA CO will be the sole authorized official to release in writing, any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this contract. The Contractor shall release no information. Any request for information relating to this contract presented to the Contractor shall be submitted to the VA CO for response.
- . Contractor personnel recognize that in the performance of this effort, Contractor personnel may receive or have access to sensitive information, including information provided on a proprietary basis by carriers, equipment manufacturers and other private or public entities. Contractor personnel agree to safeguard such information and use the information exclusively in the performance of this contract. Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations as enumerated in this section and elsewhere in this Contract and its subparts and appendices.
- . Contractor shall limit access to the minimum number of personnel necessary for contract performance for all information considered sensitive or proprietary in nature. If the Contractor is uncertain of the sensitivity of any information obtained during the performance this contract, the Contractor has a responsibility to ask the VA CO.
- . Contractor shall train all of their employees involved in the performance of this contract on their roles and responsibilities for proper handling and nondisclosure of sensitive VA or proprietary information. Contractor personnel shall not engage in any other action, venture or employment wherein sensitive information shall be used for the profit of any party other than those furnishing the information. The sensitive information transferred, generated, transmitted, or stored herein is for VA benefit and ownership alone.
- . Contractor shall maintain physical security at all facilities housing the activities performed under this contract, including any Contractor facilities according to VA-approved guidelines and directives. The Contractor shall ensure that security procedures are defined and enforced to ensure all personnel who are provided access to patient data must comply with published procedures to protect the privacy and confidentiality of such information as required by VA.
- . Contractor must adhere to the following:
 - 1) The use of “thumb drives” or any other medium for transport of information is expressly prohibited.
 - 2) Controlled access to system and security software and documentation.

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- 3) Recording, monitoring, and control of passwords and privileges.
 - 4) All terminated personnel are denied physical and electronic access to all data, program listings, data processing equipment and systems.
 - 5) VA, as well as any Contractor (or Subcontractor) systems used to support development, provide the capability to cancel immediately all access privileges and authorizations upon employee termination.
 - 6) Contractor PM and VA PM are informed within twenty-four (24) hours of any employee termination.
 - 7) Acquisition sensitive information shall be marked "Acquisition Sensitive" and shall be handled as "For Official Use Only (FOUO)".
 - 8) Contractor does not require access to classified data.
- . Regulatory standard of conduct governs all personnel directly and indirectly involved in procurements. All personnel engaged in procurement and related activities shall conduct business in a manner above reproach and, except as authorized by statute or regulation, with complete impartiality and with preferential treatment for none. The general rule is to strictly avoid any conflict of interest or even the appearance of a conflict of interest in VA/Contractor relationships.
 - . VA Form 0752, *Confidentiality of Sensitive Information Non-Disclosure Agreement*, shall be completed by all Contractor employees that receive Government furnished laptops, and shall be provided to the CO before any work is performed. In the case that Contractor personnel are replaced in the future, their replacements shall complete VA Form 0752 prior to beginning work.

13.3 VA Data Assessment, Authorization, and Continuous Monitoring

- a. The information system solution selected by the Contractor shall comply with the Federal Information Security Management Act (FISMA)
- b. The Contractor shall comply with [FedRAMP](#) requirements as mandated by Federal laws and policies, including making available any documentation, physical access, and logical access needed to support this requirement
- c. The Contractor shall, where applicable, assist with the VA ATO Process to help achieve agency authorization of the cloud service or migrated application.

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- d. The Contractor shall provide VA specific implementation diagram withing 14 days of award
- e. The Contractor shall provide IRP scenario within 14 calendar days and complete Table-Top exercise within 28 calendar days of award unless current, approved VA IRP can be provided
- f. The Contractor shall provide a System Boundary Diagram that demonstrates implementation and any proposed VA interconnections including required ports and protocols at the time award.
- g. The Contractor shall provide a FedRAMP System Security Plan (SSP) and supporting documentation at the time of award
- h. The Contractor shall provide a 3PAO Security Assessment Report (SAR) at the time of award
- i. The Contractor shall comply with VA specific controls that are required for Agency Authorization
- j. The Contractor shall keep FedRAMP baseline System Security Plan (SSP) and all attachments up to date in the OMB Max repository (If Data Security Categorization is High, Contractor to provide access to alternate document repository)
- k. The Contractor shall afford VA access to the Contractor's and Cloud Service Provider's (CSP) facilities, installations, technical capabilities, operations, documentation, records, and databases
- l. If new or unanticipated threats or hazards are discovered by either VA or the Contractor, or if existing safeguards have ceased to function, the discoverer shall immediately bring the situation to the attention of the other party in accordance with the security addendum B
- m. The Contractor shall not release any data without the consent of VA in writing. All requests for release must be submitted in writing to the Contracting Officer's Representative (COR)/Contracting Officer (CO)
- n. In order for live VA data to be used in this system, a FedRAMP Authorization and Agency ATO will be required.

Deliverables:

- a. System Boundary Diagram
- b. VA Implementation Diagram
- c. FedRAMP System Security Plan (SSP) and supporting documentation 3PAO Security Assessment Report (SAR)

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13.4 APPLICABLE VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE (per VA HANDBOOK 6500.6, APPENDIX C, APRIL 22, 2024)

1. **GENERAL.** This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.
2. **VA INFORMATION CUSTODIAL LANGUAGE.** This entire section applies to all acquisitions requiring any Information Security and Privacy language.
 - ☐ The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*. The primary clause used to define computer software license (not data/intellectual property first produced under this contract or order) is FAR 52.227-19, *Commercial Computer Software License*.
 - ☐ Information made available to the contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 *Rights in Data – General*.
 - ☐ VA information will not be co-mingled with any other data on the contractor’s information systems or media storage systems. The contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
 - ☐ VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

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- e. The contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.
- f. The contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- h. The contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- i. The contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.
- k. Notwithstanding the provision above, the contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality- assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia,

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alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the contractor is in receipt of a court order or other requests for the above- mentioned information, the contractor shall immediately refer such court order or other requests to the VA CO for response.

- l. Information made available to the contractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.
- m. Any data destruction done on behalf of VA by a contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- n. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, *Guidelines for Media Sanitization* prior to termination or completion of this contract. If directed by the COR/CO, the contractor shall return all Federal Records to VA for disposition.
- o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS. This section

applies when any person requires access to information made available to the contractor by VA for the performance or administration of this contract or

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information developed by the contractor in performance or administration of the contract.

- a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of contractor/subcontractor and agent of contractor/subcontractor.
- b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.
- c. All contractors and subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).
- d. All contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All contractors and subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the contractor must state where all non-U.S. services are provided. The contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.
- e. The contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:

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- (□) Contractor/subcontractor personnel no longer has a need for access to VA information or VA information systems.
 - (2) Contractor/subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.
 - (3) Contractor believes their own personnel or subcontractor personnel may pose a threat to their company's working environment or to any company- owned property. This includes contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.
 - (4) Any previously undisclosed changes to contractor/subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.
 - (5) Contractor/subcontractor personnel have their authorization to work in the United States revoked.
 - (6) Agreement by which contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for contractor personnel.
- f. In such cases of contract fulfillment, termination, or other causes; the contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by contractor/subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.
- g. Contractors/subcontractors who no longer require VA accesses will return VA- issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, contractors shall notify the appropriate VA COR/CO.

4. TRAINING. This entire section applies to all acquisitions which include section 3.

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- ☐ All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:
 - ☐ VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.
 - (2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and
 - (3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role- based information security training].
- b. The contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.
- c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

5. SECURITY INCIDENT INVESTIGATION. This entire section applies to all acquisitions requiring any Information Security and Privacy language.

- ☐ The contractor, subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the contractor, subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.
- ☐ To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:
 - ☐ The date and time (or approximation of) the Security Incident occurred.
 - ☐ The names of individuals involved (when applicable).
 - ☐ The physical and logical (if applicable) location of the incident.

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- ☐ Why the Security Incident took place (i.e., catalyst for the failure).
 - ☐ The amount of data belonging to VA believed to have been compromised.
 - ☐ The remediation measures the contractor is taking to ensure no future incidents of a similar nature.
- c. After the contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The contractor, subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.
- d. VA IT contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.
- e. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.
- f. The contractor shall comply with VA Handbook 6500.2, *Management of Breaches Involving Sensitive Personal Information*, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the contractor is deemed to have discovered a data breach when the contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the

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contractor/subcontractor processes or maintains under the contract; the contractor shall pay liquidated damages to the VA as set forth in clause [852.211-76, Liquidated Damages— Reimbursement for Data Breach Costs](#).

- 6. INFORMATION SYSTEM DESIGN AND DEVELOPMENT.** This entire section applies to information systems, systems, major applications, minor applications, enclaves, and platform information technologies (to include the subcomponents of each) designed or developed for or on behalf of VA by any non-VA entity.
- a. Information systems designed or developed on behalf of VA at non-VA facilities shall comply with all applicable Federal law, regulations, and VA policies. This includes standards for the protection of electronic Protected Health Information (PHI), outlined in 45 C.F.R. Part 164, Subpart C and information and system security categorization level designations in accordance with FIPS 199, Standards for Security Categorization of Federal Information and Information Systems and FIPS 200, Minimum Security Requirements for Federal Information Systems. Baseline security controls shall be implemented commensurate with the FIPS 199 system security categorization (reference VA Handbook 6500 and VA Trusted Internet Connections (TIC) Architecture).
 - b. Contracted new developments require creation, testing, evaluation, and authorization in compliance with VA Assessment and Authorization (A&A) processes in VA Handbook 6500 and VA Information Security Knowledge Service to obtain an Authority to Operate (ATO). VA Directive 6517, Risk Management Framework for Cloud Computing Services, provides the security and privacy requirements for cloud environments.
 - c. VA IT contractors, subcontractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500, VA Handbook 6517, *Risk Management Framework for Cloud Computing Services* and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the contractor shall work through the COR/CO to identify the VA organization responsible for governance or resolution. Contractors shall comply with FAR 39.1, specifically the prohibitions referenced.
 - d. The contractor (including producers and resellers) shall comply with Office of Management and Budget (OMB) M-22-18 and M-23-16 when using third-party software on VA information systems or otherwise affecting the VA information. This includes new software purchases and software renewals for software developed or modified by major version change after the issuance date of M- 22-18 (September 14, 2022). The term “software” includes firmware, operating systems, applications and application services (e.g., cloud-based software), as well as products containing software. The

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contractor shall provide a self- attestation that secure software development practices are utilized as outlined by Executive Order (EO)14028 and NIST Guidance. A third-party assessment provided by either a certified Federal Risk and Authorization Management Program (FedRAMP) Third Party Assessor Organization (3PAO) or one approved by the agency will be acceptable in lieu of a software producer's self- attestation.

- e. The contractor shall ensure all delivered applications, systems and information systems are compliant with Homeland Security Presidential Directive (HSPD) 12 and VA Identity and Access management (IAM) enterprise identity management requirements as set forth in OMB M-19-17, M-05-24, FIPS 201-3, Personal Identity Verification (PIV) of Federal Employees and Contractors (or its successor), M-21-31 and supporting NIST guidance. This applies to Commercial Off-The-Shelf (COTS) product(s) that the contractor did not develop, all software configurations and all customizations.
- f. The contractor shall ensure all contractor delivered applications and systems provide user authentication services compliant with VA Handbook 6500, VA Information Security Knowledge Service, IAM enterprise requirements and NIST 800-63, Digital Identity Guidelines, for direct, assertion-based authentication and/or trust-based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV and/or Common Access Card (CAC), as determined by the business need and compliance with VA Information Security Knowledge Service specifications.
- g. The contractor shall use VA authorized technical security baseline configurations and certify to the COR that applications are fully functional and operate correctly as intended on systems in compliance with VA baselines prior to acceptance or connection into an authorized VA computing environment. If the Defense Information Systems Agency (DISA) has created a Security Technical Implementation Guide (STIG) for the technology, the contractor may configure to comply with that STIG. If VA determines a new or updated VA configuration baseline needs to be created, the contractor shall provide required technical support to develop the configuration settings. FAR 39.1 requires the population of operating systems and applications includes all listed on the NIST National Checklist Program Checklist Repository.
- h. The standard installation, operation, maintenance, updating and patching of software shall not alter the configuration settings from VA approved baseline configuration. Software developed for VA must be compatible with VA enterprise installer services and install to the default "program files" directory with silently install and uninstall. The contractor shall perform testing of all updates and patching prior to implementation on VA systems.

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- i. Applications designed for normal end users will run in the standard user context without elevated system administration privileges.
- j. The contractor-delivered solutions shall reside on VA approved operating systems. Exceptions to this will only be granted with the written approval of the COR/CO.
- k. The contractor shall design, develop, and implement security and privacy controls in accordance with the provisions of VA security system development life cycle outlined in NIST 800-37, Risk Management Framework for Information Systems and Organizations: A System Life Cycle Approach for Security and Privacy, VA Directive and Handbook 6500, and VA Handbook 6517.
- l. The Contractor shall comply with the Privacy Act of 1974 (the Act), FAR 52.224- 2 Privacy Act, and VA rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish a VA function.
- m. The contractor shall ensure the security of all procured or developed information systems, systems, major applications, minor applications, enclaves and platform information technologies, including their subcomponents (hereinafter referred to as "Information Systems") throughout the life of this contract and any extension, warranty, or maintenance periods. This includes security configurations, workarounds, patches, hotfixes, upgrades, replacements and any physical components which may be necessary to remediate all security vulnerabilities published or known to the contractor anywhere in the information systems (including systems, operating systems, products, hardware, software, applications and firmware). The contractor shall ensure security fixes do not negatively impact the Information Systems.
- n. When the contractor is responsible for operations or maintenance of the systems, the contractor shall apply the security fixes within the timeframe specified by the associated controls on the VA Information Security Knowledge Service. When security fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the contractor shall provide written notice to the VA COR/CO that the patch has been validated as to not affecting the Systems within 10 business days.

7. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE OR USE.

This entire section applies to information systems, systems, major applications, minor applications, enclaves, and platform information technologies (cloud and non- cloud) hosted, operated, maintained, or used on behalf of VA at non-VA facilities.

- ☐ The contractor shall comply with all Federal laws, regulations, and VA policies for Information systems (cloud and non-cloud) that are hosted,

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operated, maintained, or used on behalf of VA at non-VA facilities. Security controls for collecting, processing, transmitting, and storing of VA sensitive information, must be in place. The controls will be tested by VA or a VA sanctioned 3PAO and approved by VA prior to hosting, operation, maintenance or use of the information system or systems by or on behalf of VA. This includes conducting compliance risk assessments, security architecture analysis, routine vulnerability scanning, system patching, change management procedures and the completion of an acceptable contingency plan for each system. The contractor's security control procedures shall be the same as procedures used to secure VA-operated information systems.

- . Outsourcing (contractor facility, equipment, or staff) of systems or network operations, telecommunications services or other managed services require Assessment and Authorization (A&A) of the contractor's systems in accordance with VA Handbook 6500 as specified in VA Information Security Knowledge Service. Major changes to the A&A package may require reviewing and updating all the documentation associated with the change. The contractor's cloud computing systems shall comply with FedRAMP and VA Directive 6517 requirements.
- c. The contractor shall return all electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) on non-VA leased or non-VA owned IT equipment used to store, process or access VA information to VA in accordance with A&A package requirements. This applies when the contract is terminated or completed and prior to disposal of media. The contractor shall provide its plan for destruction of all VA data in its possession according to VA Information Security Knowledge Service requirements and NIST 800-88. The contractor shall send a self-certification that the data destruction requirements above have been met to the COR/CO within 30 business days of termination of the contract.
- d. All external internet connections to VA network involving VA information must be in accordance with VA Trusted Internet Connection (TIC) Reference Architecture and VA Directive and Handbook 6513, Secure External Connections and reviewed and approved by VA prior to implementation. Government-owned contractor-operated systems, third party or business partner networks require a Memorandum of Understanding (MOU) and Interconnection Security Agreements (ISA).
- e. Contractor procedures shall be subject to periodic, announced, or unannounced assessments by VA officials, the OIG or a 3PAO. The physical security aspects associated with contractor activities are also subject to such assessments. The contractor shall report, in writing, any deficiencies noted during the above assessment to the VA COR/CO. The contractor shall use VA's defined processes to document planned remedial actions that address identified deficiencies in information security policies, procedures, and

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practices. The contractor shall correct security deficiencies within the timeframes specified in the VA Information Security Knowledge Service.

- f. All major information system changes which occur in the production environment shall be reviewed by the VA to determine the impact on privacy and security of the system. Based on the review results, updates to the Authority to Operate (ATO) documentation and parameters may be required to remain in compliance with VA Handbook 6500 and VA Information Security Knowledge Service requirements.
- g. The contractor shall conduct an annual privacy and security self-assessment on all information systems and outsourced services as required. Copies of the assessment shall be provided to the COR/CO. The VA/Government reserves the right to conduct assessment using Government personnel or a third-party if deemed necessary. The contractor shall correct or mitigate any weaknesses discovered during the assessment.
- h. VA prohibits the installation and use of personally owned or contractor-owned equipment or software on VA information systems. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW, PWS, PD or contract. All security controls required for Government furnished equipment must be utilized in VA approved Other Equipment (OE). Configuration changes to the contractor OE, must be funded by the owner of the equipment. All remote systems must use a VA-approved antivirus software and a personal (host-based or enclave based) firewall with a VA-approved configuration. The contractor shall ensure software on OE is kept current with all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-virus software and the firewall on the non-VA owned OE. Approved contractor OE will be subject to technical inspection at any time.
- i. The contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems. The system or effected component(s) need(s) to be isolated from the network. A forensic analysis needs to be conducted jointly with VA. Such issues will be remediated as quickly as practicable, but in no event longer than the timeframe specified by VA Information Security Knowledge Service. If sensitive personal information is compromised reference VA Handbook 6500.2 and Section 5, Security Incident Investigation.
- j. For cases wherein the contractor discovers material defects or vulnerabilities impacting products and services they provide to VA, the contractor shall develop and implement policies and procedures for disclosure to VA, as well as remediation. The contractor shall, within 30 business days of discovery, document a summary of these vulnerabilities or defects. The documentation

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will include a description of the potential impact of each vulnerability and material defect, compensating security controls, mitigations, recommended corrective actions, root cause analysis and/or workarounds (i.e., monitoring). Should there exist any backdoors in the products or services they provide to VA (referring to methods for bypassing computer authentication), the contractor shall provide the VA CO/CO written assurance they have permanently remediated these backdoors.

- k. All other vulnerabilities, including those discovered through routine scans or other assessments, will be remediated based on risk, in accordance with the remediation timelines specified by the VA Information Security Knowledge Service and/or the applicable timeframe mandated by Cybersecurity & Infrastructure Security Agency (CISA) Binding Operational Directive (BOD) 22- 01 and BOD 19-02 for Internet-accessible systems. Exceptions to this paragraph will only be granted with the approval of the COR/CO.

8. SECURITY AND PRIVACY CONTROLS COMPLIANCE TESTING, ASSESSMENT

AND AUDITING. This entire section applies whenever section 6 or 7 is included.

- a. Should VA request it, the contractor shall provide a copy of their (corporation's, sole proprietorship's, partnership's, limited liability company (LLC), or other business structure entity's) policies, procedures, evidence and independent report summaries related to specified cybersecurity frameworks (International Organization for Standardization (ISO), NIST Cybersecurity Framework (CSF), etc.). VA or its third-party/partner designee (if applicable) are further entitled to perform their own audits and security/penetration tests of the contractor's IT or systems and controls, to ascertain whether the contractor is complying with the information security, network or system requirements mandated in the agreement between VA and the contractor.
- b. Any audits or tests of the contractor or third-party designees/partner VA elects to carry out will commence within 30 business days of VA notification. Such audits, tests and assessments may include the following: (a): security/penetration tests which both sides agree will not unduly impact contractor operations; (b): interviews with pertinent stakeholders and practitioners; (c): document review; and (d): technical inspections of networks and systems the contractor uses to destroy, maintain, receive, retain, or use VA information.
- c. As part of these audits, tests and assessments, the contractor shall provide all information requested by VA. This information includes, but is not limited to, the following: equipment lists, network or infrastructure diagrams, relevant policy documents, system logs or details on information systems accessing, transporting, or processing VA data.

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- d. The contractor and at its own expense, shall comply with any recommendations resulting from VA audits, inspections and tests. VA further retains the right to view any related security reports the contractor has generated as part of its own security assessment. The contractor shall also notify VA of the existence of any such security reports or other related assessments, upon completion and validation.
- e. VA appointed auditors or other Government agency partners may be granted access to such documentation on a need-to-know basis and coordinated through the COR/CO. The contractor shall comply with recommendations which result from these regulatory assessments on the part of VA regulators and associated Government agency partners.

9. PRODUCT INTEGRITY, AUTHENTICITY, PROVENANCE, ANTI-COUNTERFEIT AND ANTI-TAMPERING. This entire section applies when the acquisition involves any product (application, hardware, or software) or when section 6 or 7 is included.

- ☐ a. The contractor shall comply with Code of Federal Regulations (CFR) Title 15 Part 7, "Securing the Information and Communications Technology and Services (ICTS) Supply Chain", which prohibits ICTS Transactions from foreign adversaries. ICTS Transactions are defined as any acquisition, importation, transfer, installation, dealing in or use of any information and communications technology or service, including ongoing activities, such as managed services, data transmission, software updates, repairs or the platforming or data hosting of applications for consumer download.
- b. When contracting terms require the contractor to procure equipment, the contractor shall purchase or acquire the equipment from an Original Equipment Manufacturer (OEM) or an authorized reseller of the OEM. The contractor shall attest that equipment procured from an OEM or authorized reseller or distributor are authentic. If procurement is unavailable from an OEM or authorized reseller, the contractor shall submit in writing, details of the circumstances prohibiting this from happening and procure a product waiver from the VA COR/CO.
- c. All contractors shall establish, implement, and provide documentation for risk management practices for supply chain delivery of hardware, software (to include patches) and firmware provided under this agreement. Documentation will include chain of custody practices, inventory management program, information protection practices, integrity management program for sub-supplier provided components, and replacement parts requests. The contractor shall make spare parts available. All contractor(s) shall specify how digital delivery for procured products, including patches, will be validated and monitored to ensure consistent delivery. The contractor shall apply encryption technology to protect procured products throughout the delivery process.

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- d. If a contractor provides software or patches to VA, the contractor shall publish or provide a hash conforming to the FIPS Security Requirements for Cryptographic Modules (FIPS 140-2 or successor).
- e. The contractor shall provide a software bill of materials (SBOM) for procured (to include licensed products) and consist of a list of components and associated metadata which make up the product. SBOMs must be generated in one of the data formats defined in the National Telecommunications and Information Administration (NTIA) report "The Minimum Elements for a Software Bill of Materials (SBOM)."
- f. Contractors shall use or arrange for the use of trusted channels to ship procured products, such as U.S. registered mail and/or tamper-evident packaging for physical deliveries.
- g. Throughout the delivery process, the contractor shall demonstrate a capability for detecting unauthorized access (tampering).
- h. The contractor shall demonstrate chain-of-custody documentation for procured products and require tamper-evident packaging for the delivery of this hardware.

10. VIRUSES, FIRMWARE AND MALWARE. This entire section applies when the acquisition involves any product (application, hardware, or software) or when section 6 or 7 is included.

- ☐ The contractor shall execute due diligence to ensure all provided software and patches, including third-party patches, are free of viruses and/or malware before releasing them to or installing them on VA information systems.
- ☐ The contractor warrants it has no knowledge of and did not insert, any malicious virus and/or malware code into any software or patches provided to VA which could potentially harm or disrupt VA information systems. The contractor shall use due diligence, if supplying third-party software or patches, to ensure the third-party has not inserted any malicious code and/or virus which could damage or disrupt VA information systems.
- ☐ The contractor shall provide or arrange for the provision of technical justification as to why any "false positive" hit has taken place to ensure their code's supply chain has not been compromised. Justification may be required, but is not limited to, when install files, scripts, firmware, or other contractor-delivered software solutions (including third-party install files, scripts, firmware, or other software) are flagged as malicious, infected, or suspicious by an anti-virus vendor.
- ☐ The contractor shall not upload (intentionally or negligently) any virus, worm, malware or any harmful or malicious content, component and/or corrupted

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data/source code (hereinafter “virus or other malware”) onto VA computer and information systems and/or networks. If introduced (and this clause is violated), upon written request from the VA CO, the contractor shall:

- (□) Take all necessary action to correct the incident, to include any and all assistance to VA to eliminate the virus or other malware throughout VA’s information networks, computer systems and information systems; and
- (□) Use commercially reasonable efforts to restore operational efficiency and remediate damages due to data loss or data integrity damage, if the virus or other malware causes a loss of operational efficiency, data loss, or damage to data integrity.

11. CRYPTOGRAPHIC REQUIREMENT. This entire section applies whenever the acquisition includes section 6 or 7 is included.

- . The contractor shall document how the cryptographic system supporting the contractor’s products and/or services protect the confidentiality, data integrity, authentication and non-repudiation of devices and data flows in the underlying system.
- b. The contractor shall use only approved cryptographic methods as defined in FIPS 140-2 (or its successor) and NIST 800-52 standards when enabling encryption on its products.
- c. The contractor shall provide or arrange for the provision of an automated remote key-establishment method which protects the confidentiality and integrity of the cryptographic keys.
- d. The contractor shall ensure emergency re-keying of all devices can be remotely performed within 30 business days.
- e. The contractor shall provide or arrange for the provision of a method for updating cryptographic primitives or algorithms.

12. PATCHING GOVERNANCE. This entire section applies whenever the acquisition includes section 7 is included

- . The contractor shall provide documentation detailing the patch management, vulnerability management, mitigation and update processes (to include third-party) prior to the connection of electronic devices, assets or equipment to VA’s assets. This documentation will include information regarding the follow:
 - (□) The resources and technical capabilities to sustain the program or process (e.g., how the integrity of a patch is validated by VA); and

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- (□) The approach and capability to remediate newly reported zero-day vulnerabilities for contractor products.
- . The contractor shall verify and provide documentation all procured products (including third-party applications, hardware, software, operating systems, and firmware) have appropriate updates and patches installed prior to delivery to VA.
- . The contractor shall provide or arrange the provision of appropriate software and firmware updates to remediate newly discovered vulnerabilities or weaknesses for their products and services within 30 calendar days of discovery. Updates to remediate critical or emergent vulnerabilities will be provided within seven business days of discovery. If updates cannot be made available by contractor within these time periods, the contractor shall submit mitigations, methods of exploit detection and/or workarounds to the COR/CO prior to the above deadlines.
- . The contractor shall provide or arrange for the provision of appropriate hardware, software and/or firmware updates, when those products, including open-source software, are provided to the VA, to remediate newly discovered vulnerabilities or weaknesses. Remediations of products or services provided to the VA's system environment must be provided within 30 business days of availability from the original supplier and/or patching source. Updates to remediate critical vulnerabilities applicable to the Contractor's use of the third-party product in its system environment will be provided within seven business days of availability from the original supplier and/or patching source. If applicable third-party updates cannot be integrated, tested and made available by Contractor within these time periods, mitigations and/or workarounds will be provided to the COR/CO before the above deadlines.

13. **SPECIALIZED DEVICES/SYSTEMS (MEDICAL DEVICES, SPECIAL PURPOSE SYSTEMS, RESEARCH SCIENTIFIC COMPUTING).** This entire section applies when the acquisition includes one or more Medical Device, Special Purpose System or Research Scientific Computing Device. If appropriate, ensure selected clauses from section 6 or 7 and 8 through 12 are included.

- . Contractor supplies/delivered Medical Devices, Special Purpose Systems-Operational Technology (SPS-OT) and Research Scientific Computing Devices shall comply with all applicable Federal law, regulations, and VA policies. New developments require creation, testing, evaluation, and authorization in compliance with processes specified on the Specialized Device Cybersecurity Department Enterprise Risk Management (SDCD-ERM) Portal, VA Directive 6550, *Pre-Procurement Assessment and Implementation of Medical Devices/Systems*, VA Handbook 6500, and the VA Information Security Knowledge Service. Deviations from Federal law, regulations, and VA Policy are identified and documented as part of VA

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Directive 6550 and/or the VA Enterprise Risk Analysis (ERA) processes for Specialized Devices/Systems processes.

- ☐ All contractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500 and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the contractor shall work through the COR/CO for governance or resolution.
 - ☐ The contractor shall certify to the COR/CO that devices/systems that have completed the VA Enterprise Risk Analysis (ERA) process for Specialized Devices/Systems are fully functional and operate correctly as intended. Devices/systems must follow the VA ERA authorized configuration prior to acquisition and connection to the VA computing environment. If VA determines a new VA ERA needs to be created, the contractor shall provide required technical support to develop the configuration settings. Major changes to a previously approved device/system will require a new ERA.
 - ☐ The contractor shall comply with all practices documented by the Food Drug and Administration (FDA) Premarket Submission for Management of Cybersecurity in Medical Devices and Postmarket Management of Cybersecurity in Medical Devices.
- e. The contractor shall design devices capable of accepting all applicable security patches with or without the support of the contractor personnel. If patching can only be completed by the contractor, the contractor shall commit the resources needed to patch all applicable devices at all VA locations. If unique patching instructions or packaging is needed, the contractor shall provide the necessary information in conjunction with the validation/testing of the patch. The contractor shall apply security patches within 30 business days of the patch release and have a formal tracking process for any security patches not implemented to include explanation when a device cannot be patched.
- f. The contractor shall provide devices able to install and maintain VA-approved antivirus capabilities with the capability to quarantine files and be updated as needed in response to incidents. Alternatively, a VA-approved whitelisting application may be used when the contractor cannot install an anti-virus / anti- malware application.
- g. The contractor shall verify and document all software embedded within the device does not contain any known viruses or malware before delivery to or installation at a VA location.
- h. Devices and other equipment or systems containing media (hard drives, optical disks, solid state, and storage via chips/firmware) with VA sensitive

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information will be returned to the contractor with media removed. When the contract requires return of equipment, the options available to the contractor are the following:

- ☐ The contractor shall accept the system without the drive, firmware and solid state.
- ☐ VA's initial device purchase includes a spare drive or other replacement media which must be installed in place of the original drive at time of turn- in; or
- ☐ Due to the highly specialized and sometimes proprietary hardware and software associated with the device, if it is not possible for VA to retain the hard drive, firmware, and solid state, then:
 - ☐ The equipment contractor shall have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact.
 - ☐ Any fixed hard drive, Complementary Metal-Oxide-Semiconductor (CMOS), Programmable Read-Only Memory (PROM), solid state and firmware on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be pre-approved and described in the solicitation, contract, or order.

14. **DATA CENTER PROVISIONS.** This entire section applies whenever the acquisition requires an interconnection to/from the VA network to/from a non-VA location.

- ☐ The contractor shall ensure the VA network is accessed by in accordance with VA Directive 6500 and IAM security processes specified in the VA Information Security Knowledge Service.
- ☐ The contractor shall ensure network infrastructure and data availability in accordance with VA information system business continuity procedures specified in the VA Information Security Knowledge Service.
- ☐ The contractor shall ensure any connections to the internet or other external networks for information systems occur through managed interfaces utilizing VA approved boundary protection devices (e.g., internet proxies, gateways, routers, firewalls, guards or encrypted tunnels).

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- ☐ The contractor shall encrypt all traffic across the segment of the Wide Area Network (WAN) it manages and no unencrypted Out of Band (OOB) Internet Protocol (IP) traffic will traverse the network.
- ☐ The contractor shall ensure tunnel endpoints are routable addresses at each VA operating site.
- ☐ The contractor shall secure access from Local Area Networks (LANs) at co-located sites in accordance with VA TIC Reference Architecture, VA Directive and Handbook 6513, and MOU/ISA process specified in the VA Information Security Knowledge Service.